IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 204
(CAA)-07/ND/2022

IN THE MATTER OF:
Bhuwalka Makers Pvt. Ltd. and Lorikeets Builders Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 21.07.2023

CORAM:
SHRI. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Mr. Virender Ganda Sr. Adv, Adv. Vishal Ganda, PCS Deepika Singla
For the RD : Adv. Shankari Mishra

ORDER

Ld. Counsel appearing for the RD submitted that initially the RD had certain objections to the approval of the Scheme as the undertaking in terms of Section 230(2) of the Companies Act, 2013 was not filed and the appointed date as referred to in the Scheme is 01.10.2020 instead of 01.04.2021. Confronted with the plea, Mr. Virender Ganda, Ld. Sr. Counsel appearing for the Applicants submitted that the Applicant would have no difficulty if this Tribunal declares the appointed date as 01.04.2021. Regarding the other objection, Ms. Shankari Mishra conceded that the Applicants have provided the clarification. Nevertheless, the report filed by the OL is not on record.

Let the Ld. Counsel appearing for the OL upload the same on the DMS/e-portal of this Tribunal within 2 days.

In the meantime, the Applicants would file a specific affidavit regarding the change of the Appointed date to 01.04.2021.

List on 31.07.2023.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)